



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 29 1988

DOT-E 9908

1. Pennwalt Corporation, King of Prussia, Pennsylvania, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one time shipment of carbon disulfide in a DOT Specification 105A300W tank car tank which is overdue for retest, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Pennwalt Corporation's application of January 28, 1988, submitted in accordance with 49 CFR 107.113, based on a protection of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Carbon disulfide, classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Carbon disulfide.

5. REGULATION AFFECTED. 49 CFR Part 107 Appendix B(1), 173.31(b) and (c).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 105A300W tank car tank with identifying marking, GATX 77989, meeting all DOT requirements (49 CFR Parts 100-299), except the tank is overdue for retest.

8. SPECIAL PROVISIONS.

a. Shipment must be between North Little Rock, Arkansas and Memphis, Tennessee.

b. The Federal Railroad Administration (FRA) is to be notified immediately if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 - 7th Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

c. The provisions of 49 CFR Part 107, Appendix B to Subpart B (1) do not apply.

d. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. February 10, 1988.

Issued at Washington, D.C.:

JAN 29 1988



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

DATE

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FRA